



U.S. Bankruptcy Court, District of Minnesota

Rule 5011-3. [ABROGATED]

[Effective April 15, 1997. Amended effective January 1, 2002; January 9, 2006; December 1, 2009. Abrogated effective September 3, 2025.]

2025 Advisory Committee Notes

Local Rule 5011-3 was abrogated to ensure consistency with 28 U.S.C. § 157(b)(5), (c)(1), and (d). If there is a right to a jury trial and the parties have not consented to the bankruptcy judge conducting the jury trial under Fed. R. Bankr. P. 9015(b), a party can request a withdrawal of the reference under 28 U.S.C. § 157(d), Fed. R. Bankr. P. 5011(a), and Local Rule 5011-1. Likewise, if the case involves a personal injury tort or wrongful death claim, a party can seek an order from the district court under 28 U.S.C. § 157(b)(5) and (d), Fed. R. Bankr. P. 5011(a), and Local Rule 5011-1 withdrawing the reference for trial. *See also* 28 U.S.C. § 1411 (discussing title 11 and jury trials generally). If a case involves title 11 and other laws affecting interstate commerce, a party can seek a mandatory withdrawal of the reference under 28 U.S.C. § 157(d), Fed. R. Bankr. P. 5011(a), and Local Rule 5011-1. Finally, the procedure for a bankruptcy judge hearing a non-core proceeding in which a party has not consented to entry of final orders by the bankruptcy court is generally governed by 28 U.S.C. § 157(c)(1), Fed. R. Bankr. P. 9033, and Local Rule 9033-1. The bankruptcy judge is required to issue proposed findings of fact and conclusions of law and the parties can assert objections to such findings and conclusions. Please see the 2025 Advisory Committee Notes to Local Rule 9029-2 regarding the former reference to the rule being promulgated by the district court.